

**Court No. - 37**

**Case :-** WRIT - C No. - 60205 of 2012

**Petitioner :-** Suresh

**Respondent :-** The State Of U.P. Thru Secy. And Another

**Petitioner Counsel :-** Dharmendra Kumar

**Respondent Counsel :-** C.S.C.,Amrit Lal Yadav

**Hon'ble Ashok Bhushan,J.**

**Hon'ble Abhinava Upadhya,J.**

Heard learned counsel for the petitioner, learned Standing Counsel for respondent no.1 and Sri A.L.Yadav, learned counsel appearing for the Corporation-respondent no.2.

By means of this writ petition the petitioner has prayed for quashing the demand notice dated 20.1.2012 by which electricity dues have been demanded.

The petitioner's case in this writ petition is that the electric connection was disconnected in the year 1997 itself even then demand notice has been issued for the recovery of an amount of Rs. 1,55,856/- as electricity dues.

We are of the view that the remedy of the petitioner is to file appropriate complaint under 6.5 of the U.P. Electricity Supply Code, 2005 raising all his grievances.

There being statutory remedy available to the petitioner, we are of the view that the writ petition cannot be entertained. The petitioner may avail statutory remedy as provided under the U.P. Electricity Supply Code, 2005.

With the aforesaid observation, the writ petition is disposed of.

**Order Date :-** 21.11.2012

SKM